

That is something for the Plaintiff to decide.

Disposition

Plaintiff's Motion is granted. Judgment will be entered in the amount of \$5,412.57.

Plaintiff to file order on Motion, as well as submit Judgment.

If Plaintiff wishes to stipulate to the continuance request of the Defendant, the parties can inform the court and the court will continue this Motion.

3. 9:00 AM CASE NUMBER: L23-06799

CASE NAME: BANK OF AMERICA N.A. VS. DEJA HAYNES

***HEARING ON MOTION IN RE: SET ASIDE DISMISSAL AND ENTER JUDGMENT UNDER STIPULATION
FILED BY: BANK OF AMERICA N.A.**

TENTATIVE RULING:

Background

Plaintiff filed a motion to vacate dismissal and enter judgment pursuant to stipulation. The Motion was originally scheduled for 3/17/26, but the Plaintiff had not properly noticed the Defendant, so this court continued the Motion to 5/26/26, 9am.

The court directed the Plaintiff to file the Order stemming from the continuance on 3/17/26.

Though the Motion remains unopposed, as of this writing, Plaintiff has not filed the Order, nor has Plaintiff filed any additional materials reflecting that Defendant has been served with notice of this Motion.

Disposition

Plaintiff's Motion will be vacated for lack of notice.

The court will not continue it, since this is now the second setting where Plaintiff has failed to properly serve the Defendant with notice.

4. 9:00 AM CASE NUMBER: L24-08578

CASE NAME: WESTLAKE SERVICES LLC DBA WESTLAKE FINANCIAL SERVICES VS. TANEKA HARDY

***HEARING ON MOTION IN RE: MOTION TO BE RELIEVED AS COUNSEL FILED BY DEFT ON 12-5-25
FILED BY:**

TENTATIVE RULING:

Counsel for Defendant originally filed this Motion to be heard on 3/3/26. On 3/3/26, this court continued the Motion to 5/26/26, because counsel had not provided a declaration, or any reason for the request to withdraw as counsel, nor did counsel notify the Defendant.

Counsel was also ordered to file the order reflecting the continuance.

Nothing has been filed to augment counsel's original Motion.

Disposition

This Motion is denied without prejudice.

Court to file and serve the Order.

5. 9:00 AM CASE NUMBER: L24-08990

CASE NAME: JPMORGAN CHASE BANK, N.A. VS. HANNAH KOO

*HEARING ON MOTION FOR DISCOVERY MOTION FOR ORDER THAT MTTRS IN REQ FOR
ADMISSIONS OF TRT OF FCTS BE DEEMED ADMITTED FILED BY PLN ON 6/9/25

FILED BY: JPMORGAN CHASE BANK, N.A.

TENTATIVE RULING:

Background

Plaintiff filed a Motion for Order that Matters in Request for Admission of Truth of Facts be Deemed Admitted (Motion).

Plaintiff attached the particular facts at issue, numbered One through Eight, in Attachment One of Exhibit One to their Motion, as well as proof that they served Defendant with the discovery request, and declared that Defendant never responded to the request.

Plaintiff attached a proof of service of this Motion, indicating mail service to Defendant at the address listed on Defendant's Answer.

No response has been filed by the Defendant.

Analysis

Where a party to whom requests for admission are directed fails to serve a timely response, the propounding party may seek a court order that the genuineness of any documents and/or the truth of any matters specified in the requests be deemed admitted pursuant to Code of Civil Procedure section 2033.280. See Code Civ. Proc. § 2033.280(b).

The responding party, or the Defendant in this matter, may avoid such an outcome, under Section 2033.280(a), if they subsequently serve, before the hearing, a *substantially compliant* response AND demonstrate that the reason for the untimely response was due to mistake, inadvertence, or excusable neglect.